

null and void, unless the tenant shall, after the passing of this Act and prior to such contract of sale, by writing, agree that such notice shall be valid.

2. In this Act—

“Agricultural land” means land which is either wholly agricultural or wholly pastoral, or in part agricultural and as to the rest pastoral or in whole or in part cultivated as a market garden ;

“Holding” means a parcel of agricultural land held by a tenant and which is not let to the tenant during his continuance in any office, appointment or employment held under the landlord ;

“Market garden” means a holding cultivated wholly or mainly for the purpose of the trade or business of market gardening.

3. This Act shall not apply to a contract for sale to a Government department or local authority for the purpose of providing small holdings or allotments, or for any other public purpose made within three years after the passing of this Act.

4. This Act shall not apply to Ireland.

5. This Act may be cited as the Agricultural Land Sales (Restriction of Notices to Quit) Act, 1919.

Definitions.

Exemption of purchases for public purposes.

Application of Act.
Short title.

CHAPTER 64.

An Act to extend, amend, and prolong the duration of section one of the Courts (Emergency Powers) Act, 1917.
[19th August 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Section one of the Courts (Emergency Powers) Act, 1917, which confers on the court power to suspend and annul certain contracts shall have effect as if—

Amendment of s. 1 of 7 & 8 Geo. 5. c. 25.

(a) For subsection (1) thereof the following subsection were substituted :—

“Where, upon an application by any party to a contract (including a contract confirmed by Act of Parliament or Order having the force of an

Act) entered into before the first day of January nineteen hundred and seventeen, the court is satisfied that, owing to the prevention or restriction of, or the delay in, the supply or delivery of materials, or the diversion or insufficiency of labour, or the shortage of shipping, or the alteration of trade conditions, occasioned by the present war, the contract cannot be enforced according to its terms without serious hardship, the court may, after considering all the circumstances of the case and the position of all the parties to the contract and any offer which may have been made by any party for a variation of the contract, suspend or annul, or with the consent of the parties amend as from such date as the court may think fit, or stay any proceedings for the enforcement of, the contract or any term thereof or any rights arising thereunder on such conditions (if any) as the court may think fit :

“For the purpose of this subsection where an offer made before the first day of January nineteen hundred and seventeen, was binding on a contracting party if accepted within a specified period expiring after that date and was so accepted after that date, the contract shall be deemed to have been entered into before that date.”

- (b) In subsection (2) thereof for the words “any ship” there were substituted the word “shipping” and for the words “suspend or annul the contract or stay any proceedings for the enforcement of” there were substituted the words “suspend or annul, or with the consent of the parties amend as from such date as the court may think fit, or stay any proceedings for the enforcement of” :

(2) Subsection (3) of the said section so far as it limits the duration of that section, shall cease to have effect.

Short title.

2. This Act may be cited as the Courts (Emergency Powers) Act, 1919.